

1 ENGROSSED HOUSE
2 BILL NO. 4077

By: Caldwell (Trey) and Kane of
the House

3 and

4 Hall and Haste of the
5 Senate

6
7 An Act relating to the Oklahoma Department of
8 Emergency Management; making an appropriation to the
9 Emergency Relief and Impacts Revolving Fund;
10 identifying source; establishing amounts; providing
11 purposes; requiring and limiting the utilization of
12 funds; authorizing certain memorandums of
13 understanding; limiting scope; prohibiting certain
14 memoranda terms; authorizing and limiting the
15 promulgation of rules and utilization of procedures;
16 requiring certain reports and submissions to certain
17 entities; requiring appearance before certain joint
18 committee; limiting duration of certain requirements;
19 providing determination process; providing for
20 noncodification; and declaring an emergency.

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23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Emergency Relief and Impacts
Revolving Fund established in Section 683.24B of Title 63 of the
Oklahoma Statutes, from any monies not otherwise appropriated from
the Statewide Recovery Fund created pursuant to Section 255 of Title
62 of the Oklahoma Statutes, the sum of Ten Million Five Hundred
Eighty-two Thousand Five Hundred Ninety-six Dollars (\$10,582,596.00)

1 or so much thereof as may be necessary to administer the Emergency
2 Relief and Impacts Grant Program. Such funds shall be utilized in a
3 manner consistent with the recommendations adopted by the Joint
4 Committee on Pandemic Relief Funding on April 15, 2026.

5 SECTION 2. NEW LAW A new section of law not to be
6 codified in the Oklahoma Statutes reads as follows:

7 The Oklahoma Department of Emergency Management may enter into
8 memorandums of understanding with other agencies of the State of
9 Oklahoma for the auditing, documentation, evaluation,
10 implementation, oversight, reporting, and management of funds and
11 associated efforts related to the appropriations made in this act;
12 provided, that no such memorandum of understanding shall require or
13 include, as an option or condition, the direct or practical transfer
14 or relinquishment of control by the agency appropriated such funds
15 to budget, expend, allocate, and request the distribution of the
16 funds appropriated by this act.

17 SECTION 3. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

19 The Oklahoma Department of Emergency Management may promulgate
20 rules, utilize existing rules, establish procedures, and utilize
21 existing procedures to implement the provisions of this act;
22 provided, such rules and procedures do not conflict with or impede
23 the provisions of this act.
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1 SECTION 4. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 The Oklahoma Department of Emergency Management shall retain no
4 more than two percent (2%) of the funds appropriated by this act to
5 reimburse costs:

6 1. Incurred by the Oklahoma Department of Emergency Management;

7 or

8 2. Incurred on the agency's behalf,

9 associated with the administration of the appropriated funds and
10 programming required by the Oklahoma Department of Emergency

11 Management under the provisions of this act; provided, that no funds
12 shall be retained that would be disallowable under the provisions of
13 the American Rescue Plan Act of 2021.

14 SECTION 5. NEW LAW A new section of law not to be
15 codified in the Oklahoma Statutes reads as follows:

16 A. The Oklahoma Department of Emergency Management shall:

17 1. Submit to the Chairs of the Joint Committee on Pandemic
18 Relief Funding, or any successor Oklahoma House of Representatives
19 or Oklahoma State Senate legislative committee or joint committee,
20 as designated by the Speaker of the Oklahoma House of
21 Representatives and the President Pro Tempore of the Oklahoma State
22 Senate:

- a. a written or electronic quarterly report detailing the budgeting, expenditure, and management of all monies appropriated in this act, and
- b. a copy of all memorandums of understanding and contracts with third parties entered into by the Oklahoma Department of Emergency Management to facilitate, assist, or administer powers and duties provided to the Department under the provisions of this act; and

2. At the Joint Committee on Pandemic Relief Funding's request, appear before the Joint Committee no later than six (6) months after the effective date of this act, and as otherwise requested by the Joint Committee, to provide a status update regarding the implementation of the provisions of this act.

B. The provisions of subsection A of this section shall remain applicable for the period of time that monies appropriated under this act are being budgeted, expended, or managed in the state. The ending of such period shall be determined by the State Treasurer, and shall be reported to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate.

SECTION 6. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 Passed the House of Representatives the 21st day of April, 2026.

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Presiding Officer of the House
of Representatives

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Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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